

An Act

ENROLLED SENATE
BILL NO. 1942

By: Thompson, Gillespie,
Grellner, Daniels, and
McIntosh of the Senate

and

Moore, Stinson, Pae, Grego,
Schreiber, Hasenbeck, and
Caldwell (Trey) of the
House

An Act relating to dental insurance claims; amending
36 O.S. 2021, Section 7301, which relates to dental
plan fee regulation; modifying definition; and
providing an effective date.

SUBJECT: Dental insurance

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 36 O.S. 2021, Section 7301, is
amended to read as follows:

Section 7301. A. No contract between a dental plan of a health
benefit plan and a dentist for the provision of services to patients
may require that a dentist provide services to its subscribers at a
fee set by the health benefit plan unless the services are covered
services under the applicable subscriber agreement.

B. As used in this section:

1. "Covered services" means services ~~reimbursable~~ reimbursed
under the applicable subscriber agreement, ~~subject~~ notwithstanding

and without regard to the contractual limitations on subscriber benefits as may apply, including, for example, deductibles, waiting period or frequency limitations;

2. "Dental plan" means and shall include any policy of insurance which is issued by a health benefit plan which provides for coverage of dental services not in connection with a medical plan; and

3. "Health benefit plan" means any plan or arrangement as defined in subsection C of Section 6060.4 of this title or any dental service corporation authorized pursuant to Section 2671 of this title.

C. A health benefit plan or dental plan shall establish and maintain appeal procedures for any claim by a dentist or a subscriber that is denied based on lack of medical necessity. Any such denial shall be based upon a determination by a dentist who holds a nonrestricted license in the United States. Any written communication to a dentist that includes or pertains to a denial of benefits for all or part of a claim on the basis of a lack of medical necessity shall include the identifier and license number together with state of issuance, and a contact telephone number of the licensed dentist making the adverse determination. The dentist who reviewed the claim shall only be contacted at the telephone number provided in the written communication about the denial during business hours.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 19th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 9th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____